

**SUPERIOR COURT, STATE OF CALIFORNIA
COUNTY OF SANTA CLARA**

Department 1
Honorable Eunice Lee, Presiding
TBD, Courtroom Clerk
191 North First Street, San Jose, CA 95113

DATE: May 14, 2026 TIME: 9:00 A.M. and 9:01 A.M.

**To contest the ruling, call the Court at (408) 808-6856 before 4:00 P.M.
Make sure to also let the other side know before 4:00 P.M. that you plan to contest the ruling,
in accordance with California Rule of Court, Rule 3.1308(a)(1) and Local Rule 8D.**

****Please specify the issue to be contested when calling the Court and counsel****

LAW AND MOTION TENTATIVE RULINGS

LINE 7	24CV430011	Ernest Culp, an individual vs Audio Design SJ, Inc. et al	Motion to Consolidate OFF CALENDAR. On May 11, 2026, the moving party/defendant/cross-complainant Michael Hong filed a dismissal of his cross-complaint with prejudice. Thus, the motion to consolidate is moot and VACATED.
LINE 8	25CV460197	KIMCO Realty Op, LLC vs Michael Hong	Motion to Consolidate OFF CALENDAR. On May 11, 2026, the moving party/defendant/cross-complainant Michael Hong filed a dismissal of his cross-complaint with prejudice. Thus, the motion to consolidate is moot and VACATED.

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LAW AND MOTION TENTATIVE RULINGS

<u>LINE 9</u>	25CV460672	Gil Holland et al vs Wynn Insurance Company	Motion to Stay Before the Court is Defendant Wynn Insurance Company's Motion to Stay Judgment on Sister State Judgment that was filed on May 20, 2025. The motion was accompanied by a proof of service via mail service on May 13, 2025. The motion was initially set in front of the Honorable Shella Deen on January 13, 2026, and was continued to this date based on the stipulation of the parties to allow the Texas court action to be adjudicated. On April 15, 2026, the plaintiff filed a stipulated request and proposed order to continue the motion to stay (totaling 5 pages) on the grounds that the parties are exchanging settlement documents to resolve the dispute, the defendant challenging the underlying Texas judgment dated March 10, 2025 that awarded the plaintiff \$196,873.33 against the defendant. Parties represent that the continuance will allow the Texas Court Action to be adjudicated or resolved. On May 1, 2026, the plaintiff filed an opposition to the motion to stay (totaling 10 pages) on the ground that parties submitted a stipulated continuance request on April 15. Further, on May 1, the plaintiff was advised that the settlement documents of the Texas Court Action were executed on April 27, 2026 and the settlement payments are due on or before May 27, 2026. T Thereafter, the plaintiff would dismiss this present case as party of the underlying case. The May 1, 2026 stipulation was not processed with the Court. Based on this posture, the parties request this matter be continued for the settlement term to be completed. The parties have complied with Local Rule of Court 8(c) and based on the foregoing, the court GRANTS the parties joint request to continue the matter as the Texas action has settled. The matter will be CONTINUED to July 16, 2026 at 9:00 a.m. in Department 1.
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